

		The parties should be prepared to discuss the status of their meet and confer efforts and how much additional time is necessary to comply with the above Order.
2	CCS Contractor Equipment & Supply, LLC vs. KB Steel & Building Products, a California corporation 2025-01490912	Motions to Compel Further Responses to Form Interrogatories Defendant/Cross-Complainant KB Steel & Building Products’ (“KB Steel”) motions to compel further responses from Plaintiff/Defendant CCS Contractor Equipment & Supply, LLC (“CCS”), to KB Steel’s first sets of form interrogatories and special interrogatories are granted in part and denied in part. The Court denies the request for orders compelling further responses. The Court grants the request for monetary sanctions and awards \$3,600 in reasonable attorneys’ fees and costs per motion. The Court denies KB Steel’s request for orders compelling further responses, because CCS served substantive, supplemental responses on June 30, 2026. (ROA 98, 100 [Delaney Decls. at ¶ 19, Exh. H].) The Court notes that there is no separate statement that compares the text of each interrogatory with the text of each response or <i>further response</i>. (Cal. R. Ct. Rule 3.1345, subd. (c).) Regardless, the Court disagrees with KB Steel’s contention that CCS should be compelled to serve further responses without objections; CCS properly preserved its objections when serving its original responses. With respect to monetary sanctions, the Court finds CCS has not shown it acted with substantial justification or that other circumstances that would make the imposition of sanctions unjust. (Code Civ. Proc., § 2030.300, subd. (d).) The interrogatories were served in August 2025, and CCS did not serve substantive responses until approximately 10 months later. If CCS truly could not provide substantive responses any earlier, it could have sought a motion for protective order. In connection with the motions, the Court awards KB Steel reasonable monetary sanctions in the total amount of \$7,200, against CCS. The sanctions are payable within 30 days to KB Steel’s counsel, Faegre Drinker Biddle & Reath LLP.

		KB Steel shall give notice of the ruling.
3	Comer vs. Mercury Insurance Company 2023-01322938	Motion for Summary Judgment and/or Adjudication Defendant Mercury Insurance Company’s motion for summary adjudication as to Plaintiff James Comer’s first cause of action in his Second Amended Complaint (“2AC”) for breach of the covenant of good faith and fair dealing is granted. Defendant’s request for judicial notice of Documents 1-5 is granted. Defendant’s evidentiary objections are not compliant with CRC, Rule 3.1354(b), as Defendant objected to portions of Plaintiff’s separate statement. Objections to “undisputed material facts” as opposed to “evidence” are not proper. Indeed, some of the objections are not even to actual evidence. Notwithstanding this, the Court declines to rule on the objections pursuant to Code Civ. Proc., § 437c(q). “[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law.” (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850.) “A prima facie showing is one that is sufficient to support the position of the party in question.” (<i>Id.</i> at p. 851.) A defendant moving for summary judgment satisfies his or her initial burden by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to the cause of action. (Code Civ. Proc., § 437c, subd. (p)(2).) The scope of this burden is determined by the allegations of the plaintiff’s complaint. (<i>FPI Development v. Nakashima</i> (1991) 231 Cal.App.3d 367, 381-382 [pleadings serve as the outer measure of materiality in a summary judgment motion]; 580 <i>Folsom Associates v. Prometheus Development Co.</i> (1990) 223 Cal.App.3d 1, 18-19 [defendant only required to defeat allegations reasonably contained in the complaint].) A cause of action cannot be established if the undisputed facts presented by the defendant prove the contrary of the plaintiff’s allegations as a matter of law. (<i>Brantley v. Pisaro</i> (1996) 42 Cal.App.4th 1591, 1597.) Alternatively, a moving defendant can show that a cause of action cannot be established by submitting evidence, such as discovery admissions and responses, that plaintiff does not have and cannot reasonably obtain evidence to establish an essential element of his cause of action. (<i>Aguilar v. Atlantic Richfield</i>